

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION
FOR ENGROSSED
SENATE BILL NO. 3

By: Green and Hamilton of the
Senate

and

Marti of the House

POLICY COMMITTEE RECOMMENDATION

[hemp - industrial hemp - Oklahoma Industrial Hemp
Program - licensing - agencies - revocation of
licenses - fines - violations - definitions -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3-412 of Title 2, unless there
is created a duplication in numbering, reads as follows:

A. The Oklahoma Department of Agriculture, Food, and Forestry
shall administer the Oklahoma Industrial Hemp Program in full
conformity with the definition of hemp in 7 U.S.C., Section 1639o,
as amended by Section 781 of Public Law 119-37.

1 B. No license, permit, or authorization issued under this
2 program shall allow the production, processing, sale, or
3 distribution of any product that is excluded from the definition of
4 hemp under federal law, except as expressly exempted by state law in
5 Section 3-402 of this title.

6 C. The Department may promulgate rules to implement testing
7 protocols for total tetrahydrocannabinol (THC), container limits,
8 age verification, point-of-sale restrictions, labeling, packaging,
9 and exclusions for synthetic or non-naturally occurring
10 cannabinoids.

11 D. Any state agency that issues a license, permit, or other
12 authorization to any entity subject to the provisions of this act,
13 including but not limited to the Department and the Alcoholic
14 Beverage Laws Enforcement (ABLE) Commission, shall have the
15 authority to revoke or suspend such license, permit, or
16 authorization upon a finding that the licensee or permittee has
17 violated any provision of this act or rules promulgated pursuant
18 thereto. In addition to revocation or suspension, the agency shall
19 impose a civil fine of not less than Ten Thousand Dollars
20 (\$10,000.00) for each violation.

21 E. Any product that does not qualify as hemp under this
22 section, and is not exempted under state law, shall be subject to
23 the provisions of the Uniform Controlled Dangerous Substances Act,
24 Section 2-101 et seq. of Title 63 of the Oklahoma Statutes.

SECTION 2. AMENDATORY 2 O.S. 2021, Section 3-402, as last amended by Section 1, Chapter 266, O.S.L. 2024 (2 O.S. Supp. 2025, Section 3-402), is amended to read as follows:

Section 3-402. As used in the Oklahoma Industrial Hemp Program:

1. "Container" means the innermost wrapping, packaging, or vessel in direct contact with a final hemp-derived cannabinoid product in which the final product is enclosed for retail sale to consumers, such as a jar, bottle, bag, box, can, carton, or cartridge;

2. "Department" means the Oklahoma Department of Agriculture, Food, and Forestry;

~~2.~~ 3. "Fiber" means the stalk of the industrial hemp plant and does not include the flower or seeds of the plant;

~~3.~~ 4. "Flower" means the part of the industrial hemp plant that contains the majority of the industrial hemp plant's tetrahydrocannabinol and other cannabinoids;

~~4.~~ 5. "Grain" means all of the parts of an industrial hemp plant except the stalk or the flower of the industrial hemp plant;

6. "Final hemp-derived cannabinoid product" means any intermediate or final product derived from hemp, other than industrial hemp, that contains cannabinoids in any form and is intended for human or animal use through ingestion, inhalation, topical application, or other form of administration;

1 ~~5.~~ 7. "Handling" means possessing or storing industrial hemp
2 for any period of time on premises owned, operated or controlled by
3 a person licensed to cultivate or process industrial hemp and also
4 includes possessing or storing industrial hemp in a vehicle for any
5 period of time other than during its actual transport from the
6 premises of a licensed person to cultivate or process industrial
7 hemp to the premises of another licensed person;

8 ~~6.~~ 8. "Industrial hemp" or "hemp" means the plant Cannabis
9 sativa L. and any part of the plant, including the seeds thereof,
10 and all derivatives, extracts, cannabinoids, isomers, acids, salts
11 and salts of isomers, whether growing or not, with a total delta-9
12 tetrahydrocannabinol concentration of not more than three-tenths of
13 one percent (0.3%) on a dry-weight basis, as defined in 7 U.S.C.,
14 Section 1639o, as amended by Section 781 of Public Law 119-37.
15 Furthermore, industrial hemp means hemp that is grown for the use of
16 the stalk, whole grain, oil, cake, nut, hull, or any other
17 noncannabinoid derivative of the seeds, or for fiber, or for
18 immature plants, such as microgreens or other edible leaf products,
19 or for research purposes by an institution of higher education that
20 does not enter the stream of commerce.

21 The term hemp does not include:

- 22 a. viable seeds from a cannabis plant that exceed a total
23 tetrahydrocannabinols concentration, including

tetrahydrocannabinolic acid, of three-tenths of one percent (0.3%) on a dry-weight basis,

b. any cannabinoid that is synthesized or manufactured outside the plant *Cannabis sativa L.* or that is not capable of being naturally produced by the plant,

c. intermediate hemp-derived cannabinoid products that contain greater than three-tenths of one percent (0.3%) total tetrahydrocannabinols concentration, including tetrahydrocannabinolic acid, on a dry-weight basis or that contain any cannabinoid described in subparagraph b of this paragraph, or

d. final hemp-derived cannabinoid products containing greater than four-tenths of a milligram (0.4 mg) combined total per container of total tetrahydrocannabinols, including tetrahydrocannabinolic acid, and any other cannabinoids that have similar effects, or are marketed to have similar effects, on humans or animals as tetrahydrocannabinol, as determined by the United States Secretary of Health and Human Services.

Provided, however, that the exclusion in subparagraph d of this paragraph shall not apply to hemp-derived cannabinoid beverages containing ten milligrams (10 mg) or less of total tetrahydrocannabinols per container that are sold exclusively to

1 persons twenty-one (21) years of age or older in a package store
2 licensed under the Oklahoma Alcoholic Beverage Control Act, Title
3 37A of the Oklahoma Statutes. Such beverages shall be subject to
4 age verification, labeling, packaging, testing, and other
5 requirements established by the Department in consultation with the
6 Alcoholic Beverage Laws Enforcement (ABLE) Commission;

7 ~~7.~~ 9. "Key participant" means a person who has a direct or
8 indirect financial interest in the entity producing hemp, such as an
9 owner or partner in a partnership. A key participant includes an
10 individual who is part of a corporate entity or a tribal-owned
11 corporation. A key participant also includes an executive-level
12 individual such as a chief executive officer, chief operating
13 officer, or chief financial officer. Such term shall not include
14 such management personnel as a farm, field, or shift manager or a
15 member of the leadership of a tribal government who is acting in his
16 or her capacity as a tribal leader except when such member exercises
17 executive managerial control over hemp production;

18 ~~8.~~ 10. "Licensee" means a person who holds a valid Industrial
19 Hemp License to grow industrial hemp under the Oklahoma Industrial
20 Hemp Program. ~~A licensee shall have the ability to remediate~~
21 ~~noncompliant industrial hemp with a total delta-9~~
22 ~~tetrahydrocannabinol concentration of not more than one percent~~
23 ~~(1.0%) on a dry-weight basis for retesting as set forth by the~~
24 ~~Department as long as the noncompliant industrial hemp has a total~~

~~delta-9 tetrahydrocannabinol concentration of not more than three-tenths of one percent (0.3%) on a dry-weight basis after retesting, and the option to remediate the industrial hemp through the reasonable destruction of the flower or shredding of the entire lot into a homogeneous biomass results in the remediation of any part of the industrial hemp plant that is above three-tenths of one percent (0.3%) on a dry-weight basis. All noncompliant hemp must be tracked and documented. The State Board of Agriculture shall have jurisdiction over such remediation, which includes, but is not limited to, destruction through composting, burning, or other regulated disposal methods if the industrial hemp is not remediated into a final product before processing below three-tenths of one percent (0.3%) on a dry-weight basis;~~

~~9.~~ 11. "License" means authorization by the Department for any person to grow and cultivate industrial hemp on a registered land area as part of the Oklahoma Industrial Hemp Program; ~~and~~

~~10.~~ 12. "Processing" means converting industrial hemp into a marketable form, including the production of all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers; provided, that such products qualify as hemp under this section and federal law; and

13. "Total tetrahydrocannabinols" or "total THC" means the sum of the delta-9 tetrahydrocannabinol concentration and the tetrahydrocannabinol acid concentration, as measured after

1 decarboxylation, plus any additional cannabinoids designated by the
2 Secretary of the U.S. Department of Health and Human Services as
3 having similar effects.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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